

JUSTIFICATION AND APPROVAL OTHER THAN FULL AND OPEN COMPETITION

1. Identification of the agency and the contracting activity.

This justification is executed by the Naval Medical Research Command (NMRC), Silver Spring, MD, on behalf of the Navy to meet Navy Expeditionary Medical Research requirements.

2. Nature and/or description of the action.

The Genomics & Bioinformatics Department of the Biological Defense Research Directorate, Naval Medical Research Command-Frederick maintains a state-of-the-art phage therapy portfolio aimed at ultimately providing medical countermeasures for the fleet. As part of the program, pan- and multiple-drug resistant bacterial isolates are routinely used in the laboratory to isolate and propagate bacteriophages under study. As part of the ongoing effort, the BioLog Omnilog will be utilized for evaluation of the individual phage-host pairs to select phages for treatment to overcome antibiotic resistance. This instrument is a delicate, specialized, highly technical, state-of-the-art laboratory instrument that must receive preventative maintenance and periodic updates in accordance with the original equipment manufacturer (OEM) standards/procedures by certified, authorized technicians, and be covered by a comprehensive maintenance/repair support plan/agreement in the case of hardware malfunction/failure.

3. Description of Supplies or Services:

Preventative maintenance plan and extended warranty for Biolog Omnilog, S/N OL 692. One year support plan must include at a minimum:

- One on-site preventative maintenance (PM) visit done IAW OEM standards/requirements by OEM certified and authorized service technician(s).
- Service is conducted during regular business hours.
- All workmanship (labor, travel, parts) is warranted for 30 days upon completion of the preventative maintenance service.
- All parts and modules deemed necessary to repair or replace by our Technical Service Center and/or Field Service Engineers that are not covered under warranty or an extended warranty will be billed at an additional charge.

4. Identification of the statutory exceptions permitting other than full and open competition.

The statutory exception permitting other than full and open competition for this acquisition is 10 U.S.C. 2304(c)(1) and FAR 13.106-1(b)(1) soliciting from a single source.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Biolog, Inc. is the Original Equipment Manufacturer (OEM) of this laboratory instrumentation and thus the only source that can provide authorized service technicians.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

Market research was performed, the results of which are in paragraph 8. This requirement will be posted to the government point of entry in accordance with FAR 5.202.

7. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer shall determine the anticipated cost to the Government of the supplies/services covered by this Justification and Approval will be fair and reasonable by conducting a price analysis before an award is made.

8. Description of the market survey conducted and the results, or a statement of the reasons a market survey was not conducted.

Market research was conducted by technical experts in the December 2025 timeframe. The results of the market research are documented in a Market Research Memorandum.

9. Other facts supporting the use of other than full and open competition.

As above, Biolog, Inc. is the manufacturer of the specific sequencing instrument and therefore, only preventative maintenance and repair service provided by Biolog, Inc. is acceptable to maintain the OEM required technical standards to ensure scientific integrity. The prior year contracts include award N3239824P0016 for \$5,383.00.

10. Listing of Sources, if any, which expressed, in writing, an interest in the acquisition.

To date, no other sources have written to express an interest.

11. Statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

Future requirements will be synopsized in accordance with FAR 5.203.

For the reasons set forth in Paragraph 5, NMRC has no plans at this time to compete future contacts for the types of services covered by this document. If another potential source emerges, NMRC will assess whether competition for future requirements are feasible.

12. Point of Contact:

The point of contact at the Naval Medical Research Command, Silver Spring, MD, regarding the contents of the sole source justification are the Contracting Officers in the Material Management Department (MMD) and can be reached by emailing usn.detrick.nmrc.mbx.mmd-contracts@health.mil.

TECHNICAL AND REQUIREMENTS CERTIFICATION REQUIRED

BY NAVSUP **4200.83 series**

I certify that the facts and representations under my cognizance which are included in this justification and approval and which form a basis for this justification are complete and accurate.

Technical Cognizance

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301-619-1490

Kimberly Bishop-Lilly, PhD

Date

Phone

Department Head

Genomics & Bioinformatics Department, Biological Defense Research Directorate/Naval Medical Research Command

Requirements Cognizance

Name

Date

Phone

Title

Department/Command

CONTRACTING OFFICER CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge.

Shamai M. Carter

3/26/2026

(301) 319-9948

Contracting Officer

Date

Phone